

8 September 2026

Department of
**State Development,
Infrastructure and Planning**

Our reference: 8415
Direct phone: 07 3842 2792
Email: renee.matheson@oir.qld.gov.au

Mr Cory Lea Shepherd
Via email: coryshepherd1@hotmail.com

Dear Mr Shepherd,

**WC/2024/227 – Shepherd v Workers' Compensation Regulator
Response to Notice to Admit Facts and Notice to Admit Documents**

I enclose the Respondent's response to:

1. your notice to admit facts Form 24; and
2. your notice to admit documents Form 25.

each served on the Respondent pursuant to rule 49 of the *Industrial Relations (Tribunals) Rules 2011* (Qld) (the Rules), made under the *Industrial Relations Act 2016* (Qld).

So that there is no misunderstanding as to the effect of the enclosed responses, the Respondent notes the following.

The relevant law

Rule 49 of the Rules relevantly provides:

"49 Notice to admit facts or documents

(1) A party to a proceeding (the first party) may, by notice in the approved form served on another party, ask the other party to admit, for the proceeding only, the facts or documents stated in the notice.

(2) If the other party does not, within 14 days after receiving a notice under subrule (1), serve a notice on the first party disputing the facts or the authenticity of the documents, the other party is taken to admit, for the proceeding only, the stated facts or the authenticity of the stated documents.

(3) The other party may, with the leave of the court, commission or registrar, withdraw an admission taken to have been made under subrule (2)."

The enclosed documents indicates the Respondent's notice under rule 49(2) disputing those of the stated facts and documents that are not admitted, so as to avoid those facts and documents being taken to be admitted by operation of that subrule.

As rule 49(1) makes clear on its face, any admission that is made is an admission *"for the proceeding only"* and has no effect beyond these proceedings and, for the reasons set out below, does not of itself determine relevance, admissibility or weight in the proceeding either.

Admissions are for the purposes of rule 49 only

An admission of a fact or a document under rule 49 is made for the purposes of that rule only. It is not, and should not be read as, a concession, waiver or agreement that:

- the fact or document admitted is relevant to any issue the Commission is required to determine in this appeal;
- any document, or any part of a document, referred to in the notices is admissible in evidence at the hearing of this appeal, or that the Respondent will not object to its tender at that hearing;
- any characterisation, conclusion, inference or submission you have drawn or may draw from an admitted fact or document is accepted by the Respondent; or
- the Respondent accepts the accuracy, reliability or weight of the contents of any admitted document.

Admissions as to documents are limited to existence and wording

Where the Respondent has admitted that a document contains particular words, that is an admission of the existence and wording of that document only. It is not an admission of the truth of any statement, opinion, finding or assertion recorded in it including any statement by a treating medical practitioner, any finding recorded in Review Decision 69983, or any statement made by an officer or employee of Metro South Hospital and Health Service.

The appeal is a hearing *de novo*

This appeal is to be determined by the Commission as a hearing *de novo*. Nothing in the enclosed responses is an admission that any finding in Review Decision 69983, or in any other earlier decision, is correct or binds the Commission on this appeal.

Reservation of rights

The Respondent reserves the right to object to the relevance or admissibility of any fact or document at the hearing of this appeal, notwithstanding any admission made in the enclosed responses, and reserves all of its rights in respect of every fact and document that is not admitted.

Please do not hesitate to contact the undersigned if you have any questions about the enclosed responses.

Yours sincerely



Renee Matheson
Appeals Officer
Appeals Unit